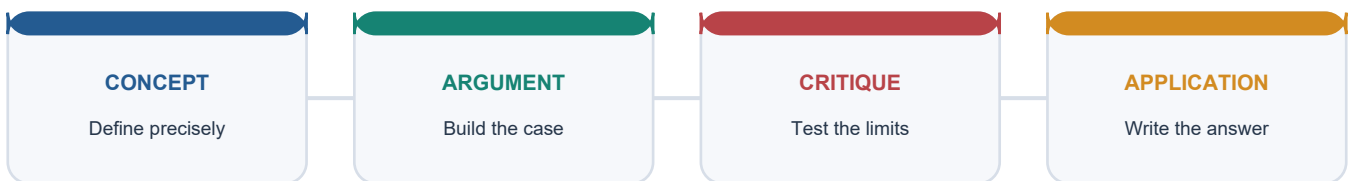


COMPLETE LEARNING SESSION

Special Provisions Relating to Certain Classes - Learner-v2 Repaired

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

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Special Provisions Relating to Certain Classes - Complete Learning Session

Complete Core-first constitutional learning session + exact practice + optional Advanced + final register notes

Legal/current control date: 9 September 2026 (Asia/Kolkata)

Evidence discipline: constitutional text, amendment enactment, Gazette commencement, census/delimitation operation, judicial holdings and analytical evaluation are kept separate.

LEARNING CONTRACT

Control	Rule
Syllabus boundary	Articles 330-342A are decoded completely; adjacent equality/local-body/area topics are cross-linked only as necessary.
Legal hierarchy	Constitution and amendment/Gazette text -> binding judgment -> official institution -> standard OCR textbook.
Current status	No future delimitation, list change, election implementation or commission action is assumed.
Answer method	Claim -> named evidence -> analysis -> qualification in every Core session.
Visual method	Every Core session begins with a diagram, flow or comparison table.
Advanced boundary	Optional enrichment appears only after Core learning and practice.

Canonical Core checked:

upsc-ai-kit\knowledge\Polity\basic\Special-Provisions-Relating-to-Certain-Classes.md **Optional**

Advanced checked:

upsc-ai-kit\knowledge\Polity\advanced\53_Special-Provisions-Relating-to-Certain-Classes.md **OCR**

source checked: M. Laxmikanth, *Courseware on Indian Polity*, 8th ed., PDF pp. 1112-1119. **Official controls:**

current Constitution; 104th, 105th and 106th Amendment texts; S.O. 1922(E), 16 April 2026; Census 2027 notification; official Supreme Court judgments.

BASIC LEARNING SESSION

SESSION 1 - PART XVI AS A DIFFERENTIATED EQUALITY ARCHITECTURE

VISUAL-FIRST MAP

CONSTITUTIONAL GOAL: substantive equality + political inclusion

```
|
+-- REPRESENTATION ----- Articles 330-334A
+-- SERVICE CLAIMS ----- Article 335
+-- OVERSIGHT ----- Articles 338-340
'-- IDENTIFICATION ----- Articles 341-342A
```

LIST != BENEFIT != COMMISSION REPORT != AREA ADMINISTRATION

Visual purpose: this map fixes the legal sequence before detailed explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Part XVI is a bundle of distinct constitutional devices for historically disadvantaged classes, not one universal reservation clause.

Technical definition: Its provisions separately allocate representational seats, service-claim consideration, monitoring institutions and class-identification authority.

ANSWER-GRABBING LINE - WRITE/ADAPT IN THE EXAM

Part XVI constitutionalises substantive equality through differentiated legal techniques, so every answer must identify the exact source, authority and effect of the safeguard.

MUST-WRITE KEYWORDS

- Part XVI
- substantive equality
- representation
- service claims
- oversight
- identification

CORE EXPLANATION

The original Constitution combined political reservation for SCs/STs, temporary Anglo-Indian representation and transitions, a service-claim rule, a Special Officer, Scheduled Area/ST-welfare supervision, backward-class investigation and Presidential SC/ST lists. Later amendments separated the NCSC and NCST, constitutionalised the NCBC, created a dual SEBC-list structure and inserted women's legislative reservation.

Question	Correct constitutional owner
Who is recognised as SC/ST/SEBC?	Articles 341, 342 and 342A
Who receives a Lok Sabha/Assembly reserved seat?	Articles 330-334A plus delimitation law
How are SC/ST service claims considered?	Article 335 with Articles 16(4A)/(4B) doctrine
Who monitors safeguards?	Articles 338, 338A and 338B
Who studies backward-class conditions?	Article 340 commission
How are Scheduled Areas administered?	Fifth/Sixth Schedules and relevant statutes, not Part XVI alone

CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Write the paragraph: Claim - Part XVI is not a single reservation code. Evidence - Articles 330-334A, 335, 338-340 and 341-342A assign four different legal effects. Analysis - separating identification from benefit protects institutional competence. Qualification - education, employment, local bodies and area administration often depend on provisions outside Part XVI.

EVIDENCE, PRELIMS TRAP AND MAINS USE

Exam tool	Session-specific use
Named evidence	Constitution of India, Part XVI, Articles 330-342A.
Prelims trap	Inclusion in a constitutional list does not automatically create every quota, grant or welfare entitlement.
Mains use	Use the four-technique map as the introduction and organising spine of any 10/15/20-mark answer.

MINI RECAP

- Identify the field first.
- Name the competent authority.
- State the legal effect, not merely the Article number.

SESSION 2 - ARTICLES 330 AND 332: SC/ST LEGISLATIVE REPRESENTATION

VISUAL-FIRST MAP

Axis	Article 330: Lok Sabha	Article 332: State Assembly
Beneficiaries	SCs; STs, with Assam autonomous-district distinction	SCs; STs, with specified North-East safeguards
Formula	As nearly as may be, population proportion	As nearly as may be, population proportion
Voters	Ordinary territorial electorate	Ordinary territorial electorate
Not covered	Rajya Sabha	Legislative Councils

Visual purpose: this map fixes the legal sequence before detailed explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: These Articles reserve candidacy/seats for SCs and STs while all electors in the territorial constituency continue to vote.

Technical definition: Political reservation is population-linked representation without revival of separate electorates.

ANSWER-GRABBING LINE - WRITE/ADAPT IN THE EXAM

Articles 330 and 332 reserve legislative seats, not electorates: the protected candidacy operates within universal adult suffrage and ordinary territorial voting.

MUST-WRITE KEYWORDS

- **Article 330**
- **Article 332**
- **population proportion**
- **territorial electorate**
- **autonomous districts**
- **North-East safeguards**

CORE EXPLANATION

Article 330. Lok Sabha seats are reserved for SCs, STs other than STs in Assam's autonomous districts, and STs in those autonomous districts. The State/UT share is, as nearly as may be, proportionate to the relevant protected population. For Assam autonomous-district STs, clause (3) supplies a minimum proportional safeguard.

Article 332. Every State Assembly reserves seats for SCs and STs, with a separate Assam autonomous-district design. Clauses (3A) and (3B) preserve minimum ST representation in Arunachal Pradesh, Meghalaya, Mizoram,

Nagaland and Tripura until the specified post-2026 readjustment. Clauses (4)-(6) protect Assam autonomous-district territorial integrity and eligibility; the Bodoland proviso preserves notified ST/non-ST representation.

Democratic meaning. A reserved constituency limits eligible candidates to the protected class; it does not create a class-exclusive electoral roll. Article 325 rejects special electoral rolls on religion, race, caste or sex grounds, and Article 326 anchors adult suffrage.

CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Write the paragraph: Claim - SC/ST political reservation works through protected candidacy within a common electorate. Evidence - Articles 330 and 332 use population-linked reserved seats, while Articles 325-326 preserve the ordinary electoral base. Analysis - this combines descriptive representation with equal citizenship. Qualification - special North-East clauses must be stated when the question concerns Assam or specified tribal-majority States.

EVIDENCE, PRELIMS TRAP AND MAINS USE

Exam tool	Session-specific use
Named evidence	Articles 330(1)-(3), 332(1)-(6), 325 and 326.
Prelims trap	Do not extend Articles 330/332 to Rajya Sabha, Legislative Councils or local bodies.
Mains use	Contrast reserved seats with separate electorates, then evaluate descriptive versus substantive representation.

MINI RECAP

- Seat/candidacy is reserved.
- The constituency electorate remains common.
- North-East clauses are specific exceptions, not a general formula.

SESSION 3 - CURRENT DELIMITATION LOGIC FOR ARTICLES 330 AND 332

VISUAL-FIRST MAP

RESERVED-SEAT PROPORTION

Article 330/332 "population" explanation

|
'-- 2001 Census figures continue
until relevant figures of first census after 2026 are published

GENERAL READJUSTMENT

Articles 82/170 freeze -> 87th Amendment permits 2001-based constituency readjustment without changing frozen Lok Sabha allocation/Assembly totals

Visual purpose: this map fixes the legal sequence before detailed explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The Constitution separates population data, total-seat allocation and drawing of territorial constituencies.

Technical definition: Published census figures are an input; a legally authorised readjustment/delimitation process produces the operative map.

ANSWER-GRABBING LINE - WRITE/ADAPT IN THE EXAM

Census publication supplies data, but only constitutional readjustment and delimitation convert population change into seats and constituency boundaries.

MUST-WRITE KEYWORDS

- last preceding census
- published figures
- 2001 Census

- Articles 82 and 170
- 84th Amendment
- 87th Amendment

CORE EXPLANATION

The Explanation to Article 330, applied also to Article 332, defines population by the last preceding census whose relevant figures have been published. Its proviso treats that reference as the **2001 Census** until relevant figures of the first census taken after 2026 are published.

Articles 82 and 170 contain a related but distinct freeze. Until publication of the relevant first-post-2026 census figures, readjustment is not required for Lok Sabha allocation among States or State Assembly totals on the frozen constitutional basis. The 84th Amendment extended the freeze; the 87th Amendment permitted readjustment of territorial constituencies on 2001 figures without changing those frozen totals.

The Delimitation Act, 2002 and resulting orders produced the ordinary 2001-based map, subject to later territory-specific constitutional or statutory arrangements. Publication of a new census does not itself draw a boundary or select a reserved constituency.

CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Write the paragraph: Claim - demographic data and legal delimitation are separate stages. Evidence - the Articles 330/332 Explanation presently points to 2001 figures, while Articles 82/170 govern readjustment. Analysis - the separation prevents automatic boundary change by statistical publication. Qualification - later territory-specific laws may modify the general map and must be checked independently.

EVIDENCE, PRELIMS TRAP AND MAINS USE

Exam tool	Session-specific use
Named evidence	Articles 330 Explanation, 82 and 170; 84th Amendment Act, 2001; 87th Amendment Act, 2003; Delimitation Act, 2002.
Prelims trap	Do not say that Census 2027 figures will automatically redraw constituencies or immediately alter the number of reserved seats.
Mains use	Use a three-stage formula: census data -> constitutional readjustment -> delimitation order.

MINI RECAP

- 2001 remains the present Article 330/332 reference.
- Post-2026 figures end the freeze trigger, not the legal process.
- Data is not a delimitation order.

SESSION 4 - THE 106TH AMENDMENT: ARTICLES 330A, 332A AND 334A

VISUAL-FIRST MAP

28 Sep 2023: 106th Amendment enacted
|
16 Apr 2026: S.O. 1922(E) commences the Act
|
first census TAKEN after commencement
|
relevant figures PUBLISHED
|
delimitation FOR THIS PURPOSE
|
women's reservation becomes electorally operative

Visual purpose: this map fixes the legal sequence before detailed explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The women's-reservation provisions are in force as constitutional text but electoral operation remains contingent on census publication and delimitation.

Technical definition: Commencement under section 1(2) and operational activation under Article 334A(1) are distinct legal gates.

ANSWER-GRABBING LINE - WRITE/ADAPT IN THE EXAM

The 106th Amendment has commenced, but Article 334A deliberately postpones electoral operation until post-commencement census figures are published and a purpose-specific delimitation is undertaken.

MUST-WRITE KEYWORDS

- 106th Amendment
- S.O. 1922(E)
- Article 330A
- Article 332A
- Article 334A
- operational activation

CORE EXPLANATION

Article 330A reserves, as nearly as may be, one-third of directly elected Lok Sabha seats for women, including one-third of seats reserved under Article 330(2) for SC/ST women. **Article 332A** applies the same design to State Assemblies. The 106th Amendment also amended Article 239AA for the Delhi Assembly.

Article 334A(1) creates the activation chain and a fifteen-year period from the commencement of the reservation provisions. **Clause (2)** allows continuation until a date Parliament determines by law. **Clause (3)** ties rotation to each subsequent delimitation as Parliament determines by law. **Clause (4)** protects representation in an existing House/Assembly until dissolution.

Verified current status, 9 September 2026. Gazette notification S.O. 1922(E), dated 16 April 2026, appointed that date for commencement. Census 2027 has been officially notified, but the relevant population figures have not been published and the Article 334A delimitation has not been completed. No current election should therefore be described as operating this reservation.

Included	Excluded
Lok Sabha, State Assemblies, Delhi Assembly	Rajya Sabha, Legislative Councils
One-third overall design	Immediate operation merely on commencement
One-third within SC/ST reserved seats	Automatic constituency rotation without parliamentary law

CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Write the paragraph: Claim - the 106th Amendment distinguishes legal commencement from electoral implementation. Evidence - S.O. 1922(E) commenced the Act on 16 April 2026, while Article 334A requires published post-commencement census figures and delimitation. Analysis - the staged design links reservation to a redrawn electoral map. Qualification - its actual first election, rotation pattern and continuation depend on future legally completed steps.

EVIDENCE, PRELIMS TRAP AND MAINS USE

Exam tool	Session-specific use
Named evidence	Constitution (One Hundred and Sixth Amendment) Act, 2023; S.O. 1922(E), 16 April 2026; Articles 330A, 332A, 334A and 239AA.
Prelims trap	Do not use enactment, commencement, census-taking, figure publication, delimitation and electoral operation as synonyms.
Mains use	Write the six-gate chain and end with a dated, non-speculative current-status sentence.

MINI RECAP

- The Act commenced on 16 April 2026.
- Reservation is not yet electorally operational.
- Rotation follows later delimitation as Parliament provides by law.

SESSION 5 - ANGLO-INDIAN REPRESENTATION AND HISTORICAL TRANSITIONS

VISUAL-FIRST MAP

Article	Original function	Present legal position
331	President could nominate up to two Anglo-Indians to Lok Sabha	Operational period ended through Article 334(b)
333	Governor could nominate one Anglo-Indian to a State Assembly	Operational period ended through Article 334(b)
334	Time clocks for SC/ST seats and Anglo-Indian nomination	80 years for clause (a); 70 for clause (b)
336	Diminishing reservation in specified Union services	Exhausted after ten years
337	Diminishing special educational grants	Exhausted after ten years

Visual purpose: this map fixes the legal sequence before detailed explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Part XVI used transitional guarantees to manage a constitutional shift rather than creating permanent Anglo-Indian entitlements.

Technical definition: The 104th Amendment split Article 334's clocks, extending SC/ST legislative reservation but not Anglo-Indian nomination.

ANSWER-GRABBING LINE - WRITE/ADAPT IN THE EXAM

The Anglo-Indian provisions illustrate constitutional transition: representation and concessions were protected temporarily, progressively reduced where specified, and allowed to expire without erasing every printed Article.

MUST-WRITE KEYWORDS

- Article 331
- Article 333
- Article 334

- 104th Amendment
- Article 336
- Article 337

CORE EXPLANATION

The original nomination powers in Articles 331 and 333 were conditional on inadequate representation. Article 334 overrides the preceding Part XVI provisions after fixed periods. The 104th Amendment Act, 2019, effective 25 January 2020, substituted separate clocks: **eighty years** for SC/ST reserved seats and **seventy years** for Anglo-Indian nomination. Consequently nomination ceased after 25 January 2020, while SC/ST legislative reservation presently runs to 25 January 2030, subject to the existing-House proviso.

Article 336 preserved the pre-Independence basis of appointment in railway, customs, postal and telegraph services for two years, then reduced reserved posts by roughly ten per cent in each succeeding two-year period and ended them after ten years. Merit appointment remained open.

Article 337 retained the 1947-48 educational-grant level for the first three financial years, then allowed ten-per-cent reduction in each succeeding three-year period. The special concession ended after ten years, and an institution needed at least forty per cent of annual admissions available to communities other than Anglo-Indians.

CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Write the paragraph: Claim - the Constitution differentiated continuing corrective representation from exhausted minority transitions. Evidence - Article 334's separate eighty- and seventy-year clocks and Articles 336-337's ten-year diminution. Analysis - periodic transition avoided abrupt withdrawal while preserving review. Qualification - Articles 331/333 remain in the text, but their nomination operation ceased through Article 334.

EVIDENCE, PRELIMS TRAP AND MAINS USE

Exam tool	Session-specific use
Named evidence	Articles 331, 333, 334, 336 and 337; 104th Amendment Act, 2019.
Prelims trap	Do not say the 104th Amendment deleted Articles 331 and 333 or extended Anglo-Indian nomination to 2030.
Mains use	Use continuing versus exhausted safeguards to explain constitutional temporariness.

MINI RECAP

- SC/ST seats and nomination have different clocks.
- Articles 336-337 are historical.
- Textual presence does not prove present operation.

SESSION 6 - ARTICLE 335: SC/ST CLAIMS, SERVICES AND EFFICIENCY

VISUAL-FIRST MAP

SC/ST CLAIMS IN UNION/STATE SERVICES

+

MAINTENANCE OF ADMINISTRATIVE EFFICIENCY

|

+-- Article 335 main text

'-- 82nd Amendment proviso:

qualifying-mark / evaluation relaxation
for promotion-reservation provisions

NO FIXED QUOTA | NO DEFINITION OF EFFICIENCY | NO OBC/EWS SOURCE

Visual purpose: this map fixes the legal sequence before detailed explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 335 requires SC/ST claims to be considered in public appointments alongside administrative efficiency.

Technical definition: It is a constitutional consideration and relaxation-enabling bridge, not a self-executing percentage reservation.

ANSWER-GRABBING LINE - WRITE/ADAPT IN THE EXAM

Article 335 does not oppose equality to efficiency; read with Article 16, it requires an inclusive administration that considers SC/ST claims while preserving constitutional standards.

MUST-WRITE KEYWORDS

- Article 335
- claims
- administrative efficiency
- 82nd Amendment
- qualifying marks
- promotion

CORE EXPLANATION

The main text applies to appointments to services and posts connected with Union or State affairs. It neither defines efficiency nor fixes a quota. The 82nd Amendment Act, 2000 inserted the proviso permitting provisions for relaxation in qualifying marks or lowering evaluation standards for reservation in promotion to classes of services/posts.

Promotion reservation derives principally from Articles 16(4A) and 16(4B), valid law and the controlling decisions. *M. Nagaraj v Union of India* (2006) upheld the enabling amendments subject to constitutional conditions. *Jarnail Singh v Lachhmi Narain Gupta* (2018) removed the requirement to collect data proving SC/ST backwardness while retaining other constitutional controls and applying creamy-layer exclusion logic in the promotion context.

The 2023 Prelims official key treated the proposition that Article 16(4) policy is limited by Article 335 as correct and the claim that Article 335 defines efficiency as incorrect. Current answers should add *State of Punjab v Davinder Singh* (2024): the Chief Justice's majority conclusion described Article 335 as a restatement of the need to consider SC/ST claims, not a free-standing limitation on Articles 16(1)/(4), and framed efficiency through inclusion and equality.

CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Write the paragraph: Claim - Article 335 integrates, rather than mechanically trades off, representation and administration. Evidence - its main text requires consideration of SC/ST claims, and the 82nd Amendment proviso allows specified promotion-related relaxation. Analysis - efficiency must be constitutionally inclusive. Qualification - the exact validity of a promotion policy depends on Articles 16(4A)/(4B), data and current precedent.

EVIDENCE, PRELIMS TRAP AND MAINS USE

Exam tool	Session-specific use
Named evidence	Article 335; 82nd Amendment Act, 2000; M. Nagaraj (2006); Jarnail Singh (2018); Davinder Singh (2024).
Prelims trap	Do not describe Article 335 as a quota, an exhaustive definition of efficiency or the source of OBC/EWS reservation.
Mains use	Use Article 335 as the service bridge, then route detailed promotion doctrine to Article 16.

MINI RECAP

- Claims must be considered.
- Efficiency is not defined.
- The proviso is specific to promotion-related relaxation.

SESSION 7 - ARTICLES 338, 338A AND 338B: THE INSTITUTION MAP

VISUAL-FIRST MAP

Body	Article	Protected field	Core function
NCSC	338	SC safeguards; clause (10) also references Anglo-Indians	Monitor, inquire, advise, evaluate, report
NCST	338A	ST safeguards and development	Monitor, inquire, advise, evaluate, report
NCBC	338B	SEBC safeguards	Monitor, inquire, advise, evaluate, report

Visual purpose: this map fixes the legal sequence before detailed explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The three commissions are constitutional accountability bodies, not courts or list-making legislatures.

Technical definition: Their civil-court powers attach to investigation and inquiry; recommendations remain subject to executive, legislative and judicial processes.

ANSWER-GRABBING LINE - WRITE/ADAPT IN THE EXAM

Constitutional status strengthens continuity, inquiry and legislative visibility, but it does not convert NCSC, NCST or NCBC recommendations into binding decrees or list amendments.

MUST-WRITE KEYWORDS

- NCSC
- NCST
- NCBC
- civil-court powers
- President's report
- action-taken memorandum

CORE EXPLANATION

Each commission has a Chairperson, Vice-Chairperson and three other members appointed by the President under prescribed conditions. Their shared functions include investigating and monitoring safeguards, inquiring into specific complaints, participating in and advising on planning, evaluating socio-economic development, presenting annual/other reports and recommending measures.

Reports go to the President and are laid before Parliament with a memorandum explaining action taken and reasons for non-acceptance. State-related portions go through the Governor to the State legislature. While investigating or

inquiring, the commissions possess specified civil-court powers such as summoning, document production and evidence on affidavit.

Distinctive points. Article 338(10) treats references to SCs as including the Anglo-Indian community for that Article. Article 338A gives NCST a tribal-specific safeguard role. The 102nd Amendment inserted Article 338B; after the 105th Amendment, the major-policy consultation clause does not apply for a State/UT preparing its own list under Article 342A(3). Detailed institutional design remains owned by Topic 31.

CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Write the paragraph: Claim - the commissions constitutionalise scrutiny, not final adjudication. Evidence - Articles 338, 338A and 338B combine inquiries, civil-court powers, reports and action memoranda. Analysis - their leverage lies in evidence and legislative accountability. Qualification - government policy, parliamentary list law and judicial remedies remain institutionally distinct.

EVIDENCE, PRELIMS TRAP AND MAINS USE

Exam tool	Session-specific use
Named evidence	Articles 338, 338A and 338B; 65th, 89th, 102nd and 105th Amendments.
Prelims trap	Civil-court powers during inquiry do not make a commission's recommendation a decree.
Mains use	Evaluate commissions through mandate, information powers, report route, implementation gap and judicial review.

MINI RECAP

- All three are constitutional bodies.
- Reports require action/non-acceptance explanation.
- None can amend Articles 341-342A lists by itself.

SESSION 8 - ARTICLES 339 AND 340: SUPERVISION VERSUS INVESTIGATION

VISUAL-FIRST MAP

ARTICLE 339 Scheduled Areas + ST welfare	ARTICLE 340 SEBC conditions
President may appoint commission mandatory once after ten years	President may appoint commission temporary fact-finding mandate
Union directions to States	report + recommendations + grants
ST-welfare scheme supervision	report + action memorandum to Parliament

Visual purpose: this map fixes the legal sequence before detailed explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 339 supervises Scheduled Area/ST-welfare administration; Article 340 enables investigation of backward-class conditions.

Technical definition: Neither provision creates the permanent NCSC, NCST or NCBC, and neither automatically grants a reservation.

ANSWER-GRABBING LINE - WRITE/ADAPT IN THE EXAM

Articles 339 and 340 are procedural accountability routes: one reinforces Union supervision of tribal welfare, while the other creates evidence for backward-class policy.

MUST-WRITE KEYWORDS

- Article 339
- Scheduled Areas

- Union directions
- Article 340
- conditions of backward classes
- action memorandum

CORE EXPLANATION

Under Article 339(1), the President may at any time appoint a commission to report on Scheduled Area administration and ST welfare and was constitutionally required to do so after ten years from commencement. The U.N. Dhebar Commission (1960-61) and the Dilip Singh Bhuria Commission (2002-04) are standard examples. Clause (2) extends Union executive power to State directions on schemes specified as essential for ST welfare.

Article 340 authorises a presidential order appointing a commission to investigate the conditions of socially and educationally backward classes, their difficulties and recommended Union/State steps, including grants. The report and action memorandum are laid before Parliament. The Kaka Kalelkar Commission (1953-55) and B.P. Mandal Commission (1979-80) illustrate the route.

Article 339 does not replace Fifth/Sixth Schedule institutions, Article 275 grants, PESA or FRA. Article 340 does not equal the standing NCBC created by Article 338B and does not itself confer a quota.

CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Write the paragraph: Claim - constitutional investigation is an input to policy, not the benefit itself. Evidence - Articles 339 and 340 authorise reports, directions and recommendations. Analysis - they create information and intergovernmental accountability. Qualification - implementation still requires the competent constitutional, legislative, fiscal or executive instrument.

EVIDENCE, PRELIMS TRAP AND MAINS USE

Exam tool	Session-specific use
Named evidence	Articles 339 and 340; Dhebar and Bhuria Commissions; Kalelkar and Mandal Commissions.
Prelims trap	Do not merge Article 339's tribal-welfare supervision, Article 340's temporary inquiry and Article 338B's permanent NCBC.
Mains use	Use the supervision/investigation distinction to prevent an institution-heavy answer from becoming a list of names.

MINI RECAP

- 339 concerns Scheduled Areas/ST welfare.
- 340 investigates SEBC conditions.
- Neither automatically creates reservation.

SESSION 9 - ARTICLES 341 AND 342: SC/ST LIST MECHANICS

VISUAL-FIRST MAP

INITIAL SPECIFICATION

President -> public notification -> State-specific consultation with Governor

|

v

SC LIST (Article 341) / ST LIST (Article 342)

|

v

INCLUSION OR EXCLUSION

Parliament by law only

SUBSEQUENT PRESIDENTIAL NOTIFICATION CANNOT VARY THE LIST

Visual purpose: this map fixes the legal sequence before detailed explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: SC and ST status is territorially specified through Presidential notification and altered only by parliamentary law.

Technical definition: Articles 341(2) and 342(2) centralise formal inclusion/exclusion while leaving benefit design to other constitutional provisions and laws.

ANSWER-GRABBING LINE - WRITE/ADAPT IN THE EXAM

Articles 341 and 342 protect list integrity through a two-stage federal process: presidential specification after State consultation and parliamentary alteration by law.

MUST-WRITE KEYWORDS

- **Presidential notification**
- **Governor consultation**
- **Parliament by law**
- **territorial list**
- **inclusion**
- **exclusion**

CORE EXPLANATION

Article 341 permits the President, for a State or Union territory and after consulting the Governor where a State is concerned, to specify castes, races, tribes or parts/groups deemed Scheduled Castes in relation to that territory.

Article 342 uses the same process for tribes, tribal communities or parts/groups deemed Scheduled Tribes.

Parliament alone may include in or exclude from the notified list by law; the original notification cannot be varied by a later executive notification. A State may collect evidence, recommend a change and design lawful benefits, but cannot independently add or remove a community from the Article 341/342 list.

Territoriality matters: recognition in one State/UT does not automatically establish identical status in another. Also, a list answers **who is legally recognised**; Articles 15, 16, 330, 332, statutes and policies answer **what benefit follows**.

CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Write the paragraph: Claim - SC/ST list alteration is constitutionally centralised. Evidence - Articles 341(2) and 342(2) reserve inclusion/exclusion to Parliament by law. Analysis - this maintains formal list integrity across federal units. Qualification - States retain benefit-design powers within their competence but cannot rewrite the notified list.

EVIDENCE, PRELIMS TRAP AND MAINS USE

Exam tool	Session-specific use
Named evidence	Articles 341 and 342 and the relevant Presidential Orders/parliamentary amendment Acts.
Prelims trap	Do not treat commission advice, a State cabinet decision or a court's distribution ruling as formal inclusion in the list.
Mains use	Structure list questions as specification -> alteration -> territoriality -> benefit firewall.

MINI RECAP

- President specifies initially.
- Parliament includes/excludes.
- State-specific status is not automatically pan-India.

SESSION 10 - ARTICLE 342A: THE 102ND-105TH AMENDMENT FEDERAL SETTLEMENT

VISUAL-FIRST MAP

102ND AMENDMENT, 2018
Article 338B + original 342A + Article 366(26C)
|
JAISHRI LAXMANRAO PATIL, 2021
majority: pre-105th text displaced State identification power
|
105TH AMENDMENT, 2021
+-- 342A(1)-(2): Central List for Central purposes
'-- 342A(3): State/UT own-purpose list by law; entries may differ

Visual purpose: this map fixes the legal sequence before detailed explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The current Constitution maintains both a Central SEBC List and separate State/UT own-purpose lists.

Technical definition: Article 342A now allocates Central-list specification/variation to the President and Parliament while expressly restoring State/UT list competence by law.

ANSWER-GRABBING LINE - WRITE/ADAPT IN THE EXAM

The 102nd-105th Amendment sequence is a federal correction: constitutional NCBC status was retained while State and Union list-identification powers were textually separated.

MUST-WRITE KEYWORDS

- 102nd Amendment
- Article 338B
- Article 342A
- Jaishri Laxmanrao Patil
- 105th Amendment
- Central List

CORE EXPLANATION

The 102nd Amendment Act, 2018 constitutionalised the NCBC through Article 338B, inserted Article 342A and Article 366(26C), and replaced the earlier statutory list-focused design. The original Article 342A used presidential specification and parliamentary variation language.

In *Jaishri Laxmanrao Patil v Chief Minister, Maharashtra* (2021), the Supreme Court majority read the pre-105th text as taking away States' independent SEBC-identification power, leaving them to make recommendations. The Maratha law also failed the separate *Indra Sawhney* fifty-per-cent ceiling analysis; that holding must not be confused with the list-power issue.

The 105th Amendment Act, 2021 reworked the settlement:

Current clause	Legal effect
Article 342A(1)	President specifies SEBCs in the Central List for Central Government purposes
Article 342A(2)	Parliament includes/excludes from that Central List by law

Current clause	Legal effect
Explanation	Defines the Central List as prepared and maintained by and for the Central Government
Article 342A(3)	State/UT may by law prepare and maintain its own-purpose list; entries may differ

It also adjusted Article 366(26C) and exempted Article 342A(3) State-list purposes from the Article 338B(9) consultation requirement.

CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Write the paragraph: Claim - current SEBC identification is expressly dual. Evidence - Article 342A(1)-(2) controls the Central List, while clause (3) authorises State/UT own-purpose lists by law. Analysis - the 105th Amendment answered the federal consequence of Jaishri. Qualification - State SEBC-list power does not extend to SC/ST lists under Articles 341/342.

EVIDENCE, PRELIMS TRAP AND MAINS USE

Exam tool	Session-specific use
Named evidence	102nd Amendment Act, 2018; Jaishri Laxmanrao Patil (2021); 105th Amendment Act, 2021.
Prelims trap	Do not say the 105th Amendment abolished the Central List or authorised States to alter SC/ST lists.
Mains use	Use a before-judgment-after timeline and separate the Maratha ceiling holding from the Article 342A federal holding.

MINI RECAP

- Central and State lists coexist.
- State/UT action must be by law.
- Entries may differ for their respective purposes.

SESSION 11 - EQUALITY CROSS-ROUTES: EWS, LOCAL BODIES AND ARTICLE 275

VISUAL-FIRST MAP

Issue	Governing source	Part XVI relationship
EWS education/services	Articles 15(6), 16(6); 103rd Amendment	Separate equality route
Panchayat reservation	Article 243D	Local-government route
Municipal reservation	Article 243T	Local-government route
ST welfare/Scheduled Area grants	Article 275(1)	Fiscal support route
Scheduled Area administration	Fifth/Sixth Schedules	Territorial-governance route

Visual purpose: this map fixes the legal sequence before detailed explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Part XVI must be connected to, but not confused with, equality, local-government, fiscal and territorial provisions.

Technical definition: Cross-links show that beneficiary identity and benefit-conferral authority are constitutionally separable.

ANSWER-GRABBING LINE - WRITE/ADAPT IN THE EXAM

A constitutional list identifies a class; the operative benefit must still be traced to the equality clause, representation provision, statute, fiscal grant or territorial regime that authorises it.

MUST-WRITE KEYWORDS

- 103rd Amendment
- EWS
- Articles 15(6) and 16(6)
- Articles 243D and 243T
- Article 275
- Fifth and Sixth Schedules

CORE EXPLANATION

The 103rd Amendment Act, 2019 inserted Articles 15(6) and 16(6), enabling EWS measures including additional reservation up to ten per cent within each clause's field. *Janhit Abhiyan v Union of India* (2022) upheld the amendment by 3:2, including its economic criterion and exclusion of classes covered by the identified existing reservation clauses. EWS is not an Article 342A SEBC list and does not arise from Article 335.

Articles 243D and 243T separately govern Panchayat and municipal reservation, including SC/ST and women's seats/offices. Article 334 does not control their duration. Article 275(1) provides a specific grant route for ST welfare schemes and raising Scheduled Area administration; it neither changes the Article 342 list nor replaces the Fifth/Sixth Schedules.

This owner-scope discipline is essential for Prelims matching questions and prevents Mains answers from attributing every inclusion measure to Part XVI.

CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Write the paragraph: Claim - affirmative action is distributed across constitutional sites. Evidence - EWS uses Articles 15(6)/16(6), local-body seats use Articles 243D/243T and tribal grants use Article 275. Analysis - different sources permit tailored institutions and procedures. Qualification - each measure remains subject to its own text, law and judicial limits.

EVIDENCE, PRELIMS TRAP AND MAINS USE

Exam tool	Session-specific use
Named evidence	103rd Amendment Act, 2019; Janhit Abhiyan (2022); Articles 243D, 243T and 275.
Prelims trap	Do not classify EWS as an Article 342A community or local-body reservation as an Article 334 extension.
Mains use	Use the owner table to add necessary cross-links without duplicating Topic 7, Topic 23/24 or Topic 26.

MINI RECAP

- EWS is separate from SEBC listing.
- Local bodies have their own Articles.
- Article 275 is fiscal, not classificatory.

SESSION 12 - SC SUB-CLASSIFICATION: E.V. CHINNAIAH TO DAVINDER SINGH

VISUAL-FIRST MAP

ARTICLE 341 LIST INTEGRITY

|
E.V. CHINNAIAH (2004)
SC list treated as indivisible for State sub-classification
|
STATE OF PUNJAB v DAVINDER SINGH (2024), 6:1
+-- SCs are socially heterogeneous
+-- rational principle + nexus + evidence/data required
+-- Articles 15(4)/16(4) may support fair distribution
'-- Article 341 list itself remains untouched

NO ALL-SEATS EXCLUSIVITY | NO COMPULSORY NATIONAL MODEL

Visual purpose: this map fixes the legal sequence before detailed explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Sub-classification distributes a valid benefit within the notified class; it does not add or remove a caste from the Article 341 list.

Technical definition: Davinder Singh overruled Chinnaiah's categorical bar while subjecting State differentiation to substantive-equality reasoning, evidence and judicial review.

ANSWER-GRABBING LINE - WRITE/ADAPT IN THE EXAM

Davinder Singh permits evidence-based differentiation within the Scheduled Castes for fair benefit distribution, but preserves Parliament's exclusive Article 341 list-alteration power.

MUST-WRITE KEYWORDS

- E.V. Chinnaiah
- Davinder Singh
- sub-classification
- substantive equality
- rational nexus
- Article 341 integrity

CORE EXPLANATION

E.V. Chinnaiah v State of Andhra Pradesh (2004) invalidated Andhra Pradesh's grouping law and treated the Presidential SC list as an indivisible class for State sub-classification.

A seven-judge Bench in *State of Punjab v Davinder Singh* (2024) overruled that holding by 6:1. The Chief Justice's controlling conclusions state that Article 341 identifies the Scheduled Castes but does not make them socially homogeneous. A State may further classify under Articles 15(4) and 16(4) where there is a rational principle of differentiation connected to the purpose. In the service context, the State must collect data showing inadequacy of representation linked to backwardness.

Limits.

1. A State cannot include or exclude a caste from the Article 341 list.
2. Preference cannot become exclusive benefit over all seats reserved for the SC class.
3. A political label without evidence is vulnerable to Article 14 review.
4. The judgment enables; it does not compel every State to adopt one model.
5. Separate concurring observations on a creamy-layer principle should not be converted into an automatic nationwide list-deletion or exclusion rule.
6. Justice Bela M. Trivedi dissented and would have preserved the Chinnaiah bar.

CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Write the paragraph: Claim - list identity and distributive design answer different constitutional questions. Evidence - Davinder Singh overruled Chinniah and allowed rational, evidence-based sub-classification under Articles 15(4)/16(4). Analysis - internal differentiation may advance substantive equality where benefit capture is unequal. Qualification - Article 341 alteration remains parliamentary and all-seats exclusivity is impermissible.

EVIDENCE, PRELIMS TRAP AND MAINS USE

Exam tool	Session-specific use
Named evidence	E.V. Chinniah v State of Andhra Pradesh (2004); State of Punjab v Davinder Singh, 2024 INSC 562.
Prelims trap	Do not say Davinder Singh lets States delete SCs, mandates sub-classification everywhere or makes every creamy-layer observation a uniform operative rule.
Mains use	Write list integrity -> distribution distinction -> evidence standard -> limits -> qualified equality verdict.

MINI RECAP

- Chinniah's categorical bar was overruled.
- Evidence and rational nexus are essential.
- Article 341 list power did not move to the States.

SESSION 13 - INTEGRATED DECISION TREE AND ANSWER-WRITING SPINE

VISUAL-FIRST MAP

QUESTION

|
+-- FIELD? legislature / service / education / list / oversight / welfare
+-- CLASS? SC / ST / SEBC / EWS / Anglo-Indian transition
+-- SOURCE? Article + amendment + law + judgment
+-- AUTHORITY? President / Parliament / State / commission / delimitation
+-- EFFECT? identify / reserve / distribute / monitor / fund
'-- STATUS? commenced / operational / expired / pending step

VERDICT: exact-source discipline is itself a constitutional safeguard.

Visual purpose: this map fixes the legal sequence before detailed explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: A high-scoring answer moves from field and class to source, authority, effect and current status.

Technical definition: The decision tree prevents category errors while supporting a substantive-equality evaluation.

ANSWER-GRABBING LINE - WRITE/ADAPT IN THE EXAM

Part XVI works best when constitutional recognition, political voice, administrative inclusion and accountable distribution are treated as connected goals but legally distinct powers.

MUST-WRITE KEYWORDS

- field
- class
- source
- authority
- legal effect
- current status

CORE EXPLANATION

Use the following exam sequence:

1. **Define the field.** Legislative representation, service claims, oversight and identification trigger different Articles.
2. **Name the class.** SC, ST, SEBC, EWS and the historical Anglo-Indian provisions are not interchangeable.
3. **State exact authority.** President initially specifies; Parliament alters central constitutional lists; States legislate own-purpose SEBC lists; commissions investigate/report.
4. **Explain effect.** Identification is not benefit conferral; inquiry is not adjudication; commencement is not electoral operation.
5. **Add amendment/case.** Use 104th, 105th, 106th, *Jaishri* or *Davinder* only for the proposition they control.
6. **Conclude with equality plus institutional discipline.**

ASCII MASTER FLOW DIAGRAM

ASCII MASTER FLOW - PANEL 1/12: Core concept and constitutional origin
ROOT: Part XVI uses different legal techniques to pursue substantive equality.

REPRESENTATION -> Articles 330-334A.
SERVICE CLAIMS -> Article 335.
COMMISSIONS / OVERSIGHT -> Articles 338-340.
CLASS IDENTIFICATION -> Articles 341-342A.

FIREWALL: a list identifies; a reservation provision authorises; a commission monitors.

ASCII MASTER FLOW - PANEL 2/12: Articles 330 and 332 plus delimitation
ARTICLE 330 -> SC/ST seats in Lok Sabha, broadly population-proportionate.
ARTICLE 332 -> SC/ST seats in State Assemblies, with specified North-East safeguards.
ORDINARY TERRITORIAL ELECTORATE -> every elector votes; no separate electorate.

POPULATION EXPLANATION -> 2001 figures continue until relevant first post-2026 census figures publish.
ARTICLES 82/170 -> total-seat readjustment remains frozen pending that publication.
87TH AMENDMENT -> constituency readjustment could use 2001 figures without changing frozen totals.

ASCII MASTER FLOW - PANEL 3/12: Articles 330A, 332A and 334A
106TH AMENDMENT (2023) -> inserted Articles 330A, 332A, 334A and amended Article 239AA.
S.O. 1922(E), 16 APRIL 2026 -> Amendment commenced.

OPERATION CHAIN:
first census taken after commencement -> relevant figures published
-> delimitation for this purpose -> reservation takes electoral effect.

SCOPE -> Lok Sabha, State Assemblies, Delhi Assembly; not Rajya Sabha or Councils.
DESIGN -> about one-third overall, including about one-third within SC/ST reserved seats.

ASCII MASTER FLOW - PANEL 4/12: Duration, rotation and existing Houses
ARTICLE 334A(1) -> fifteen years from commencement of the reservation provisions.
ARTICLE 334A(2) -> Parliament may by law determine continuation.
ARTICLE 334A(3) -> rotation after each subsequent delimitation as Parliament determines by law.
ARTICLE 334A(4) -> existing House/Assembly representation continues until dissolution.

CURRENT STATUS, 9 SEPTEMBER 2026:
Amendment commenced; relevant census figures and purpose-specific delimitation are not complete.
Therefore the reservation is not yet electorally operational.

ASCII MASTER FLOW - PANEL 5/12: Anglo-Indian representation and transition
ARTICLE 331 -> President could nominate up to two Anglo-Indians to Lok Sabha.
ARTICLE 333 -> Governor could nominate one Anglo-Indian to a State Assembly.
ARTICLE 334 -> SC/ST seat clock is eighty years; nomination clock remained seventy years.
104TH AMENDMENT (2019, effective 2020) -> SC/ST reservation to 25 January 2030;
Anglo-Indian nomination ceased after 25 January 2020.

ARTICLE 336 -> specified Union-service transition ended after ten years.
ARTICLE 337 -> diminishing educational-grant transition ended after ten years.
TRAP: ceased operation is not the same as textual deletion of Articles 331/333.

ASCII MASTER FLOW - PANEL 6/12: Article 335 service-claim bridge
ARTICLE 335 -> SC/ST claims considered in Union/State appointments consistently with efficiency.
82ND AMENDMENT (2000) -> permits qualifying-mark/evaluation relaxation for promotion reservation.
ARTICLE 335 -> no fixed quota; no definition of "efficiency"; no OBC/EWS source.

M. NAGARAJ (2006) and JARNAIL SINGH (2018) -> promotion doctrine belongs with Articles 16(4A)/(4B).
DAVINDER SINGH (2024) -> efficiency should promote inclusion; Article 335 is a restatement, not a free-standing veto over substantive equality.

ASCII MASTER FLOW - PANEL 7/12: Articles 338, 338A and 338B institutions
ARTICLE 338 -> NCSC: monitor safeguards, inquire complaints, advise/evaluate, report.
ARTICLE 338A -> NCST: parallel ST safeguard body with tribal-development focus.
ARTICLE 338B -> NCBC: SEBC safeguard body constitutionalised by 102nd Amendment.

COMMON MECHANISM -> President-appointed Chair, Vice-Chair and three members;
investigative civil-court powers; reports plus action-taken/non-acceptance memoranda.
LIMIT -> reports are influential but not binding decrees; commissions cannot alter lists.
ARTICLE 338(10) -> NCSC reference includes the Anglo-Indian community.

ASCII MASTER FLOW - PANEL 8/12: Articles 339 and 340
ARTICLE 339(1) -> President may appoint a Scheduled Areas/ST-welfare commission;

appointment was compulsory after ten years from Constitution commencement.
ARTICLE 339(2) -> Union may direct States on schemes essential for ST welfare.

ARTICLE 340 -> President may appoint a temporary commission to investigate SEBC conditions, difficulties, remedies and grants; report plus action memorandum goes to Parliament.

DISTINCTION -> Article 339 supervision is not Fifth/Sixth Schedule administration;
Article 340 commission is not the permanent NCBC under Article 338B.

ASCII MASTER FLOW - PANEL 9/12: Articles 341 and 342 list mechanics
ARTICLE 341 -> President initially specifies State/UT-specific Scheduled Castes;
Parliament alone may include or exclude by law.
ARTICLE 342 -> same architecture for Scheduled Tribes.

STATE ROLE -> consultation at initial State notification; no independent list alteration.
TERRITORIALITY -> status in one State/UT is not automatically status everywhere.
COMMISSION ADVICE -> evidence for government/Parliament, not a list-amending act.

ASCII MASTER FLOW - PANEL 10/12: Article 342A and SEBC federalism
102ND AMENDMENT (2018) -> Article 338B, original Article 342A, Article 366(26C).
JAISHRI LAXMANRAO PATIL (2021) -> majority read pre-105th text as displacing State identification.
105TH AMENDMENT (2021) -> Central List retained for Central purposes;
States/UTs may by law maintain own-purpose lists, which may differ.

ARTICLE 342A(1)-(2) -> President specifies and Parliament varies the Central List.
ARTICLE 342A(3) -> State/UT own-purpose list by law.
LIMIT -> State SEBC power does not alter Articles 341/342 SC/ST lists.

ASCII MASTER FLOW - PANEL 11/12: EWS and SC sub-classification firewalls
103RD AMENDMENT (2019) -> Articles 15(6), 16(6) enable EWS measures; not Article 342A.
JANHIT ABHIYAN (2022) -> 3:2 majority upheld that amendment.

E.V. CHINNAIAH (2004) -> treated notified SCs as indivisible for sub-classification.
STATE OF PUNJAB v DAVINDER SINGH (2024) -> 6:1 Court overruled that bar.
STATE MAY -> use rational, evidence-based sub-classification under Articles 15(4)/16(4).
STATE MAY NOT -> change Article 341 list or give all SC-reserved seats exclusively to a subgroup.
NO AUTOMATIC RULE -> sub-classification is enabling, reviewable and not nationally compulsory.

ASCII MASTER FLOW - PANEL 12/12: Examiner decision tree and answer spine
STEP 1 FIELD -> Parliament/Assembly, local body, education, service, welfare or list.
STEP 2 CLASS -> SC, ST, SEBC, EWS or Anglo-Indian transition.
STEP 3 SOURCE -> exact Article, amendment, statute, notification or judgment.
STEP 4 AUTHORITY -> President, Parliament, State law, commission or delimitation process.
STEP 5 EFFECT -> identify, represent, distribute, monitor, fund or adjudicate.
STEP 6 STATUS -> enacted, commenced, operational, expired or pending implementation.

ANSWER VERDICT:
Part XVI is a differentiated constitutional architecture; precision about source, authority and legal effect is the safeguard against both under-inclusion and overclaim.

CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Write the paragraph: Claim - legal precision improves both inclusion and federal accountability. Evidence - Part XVI assigns specification, reservation, service consideration and monitoring to different actors. Analysis - the division prevents one institution from converting advice into law or identity into automatic entitlement. Qualification - substantive equality still requires evidence, periodic review and effective implementation.

EVIDENCE, PRELIMS TRAP AND MAINS USE

Exam tool	Session-specific use
Named evidence	Complete Articles 330-342A spine, relevant equality cross-routes and controlling amendment/case sequence.
Prelims trap	Do not write an undifferentiated essay on reservation; answer the exact legal mechanism asked.
Mains use	Use the six-step tree as a ready 20-mark structure and compress it for 10/15 marks.

MINI RECAP

- Exact Article.
- Exact authority.

- Exact effect.
- Dated current-status qualification.

Practice contract: Exactly 32 original MCQs follow before the PYQs. Correct answers rotate A -> B -> C -> D eight times. Every option has a question-specific explanation and every question has one unique examiner trap.

BASIC MCQS / REMEDIATION

MCQ 1

Which statement best captures Part XVI?

A. It separates representation, service claims, oversight and class identification. B. It is the exclusive source of all educational and employment quotas. C. It places Fifth and Sixth Schedule administration under the NCSC. D. It makes constitutional-list entry an automatic entitlement to every benefit.

Answer: A.

Option-specific explanations:

- **A - Correct:** Articles 330-342A use four distinct legal techniques. [MCQ 1, option A: It separates representation, service claims, oversight and class identification.]
- **B - Incorrect:** educational and service reservation principally uses Articles 15 and 16 plus valid law. [MCQ 1, option B: It is the exclusive source of all educational and employment quotas.]
- **C - Incorrect:** Scheduled Area administration has separate constitutional and statutory owners. [MCQ 1, option C: It places Fifth and Sixth Schedule administration under the NCSC.]
- **D - Incorrect:** list status identifies a class; each benefit requires separate authority. [MCQ 1, option D: It makes constitutional-list entry an automatic entitlement to every benefit.]

Examiner trap 1: A list, a seat, a service claim and a commission report are not synonyms.

MCQ 2

What is the electoral effect of Articles 330 and 332?

A. Only SC/ST electors may vote in the reserved constituency. B. The eligible candidate is protected while ordinary constituency electors vote. C. They reserve seats in Rajya Sabha and Legislative Councils. D. They authorise State cabinets to alter SC/ST lists.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** the territorial electoral roll remains common. [MCQ 2, option A: Only SC/ST electors may vote in the reserved constituency.]
- **B - Correct:** this is reserved candidacy within the common electorate. [MCQ 2, option B: The eligible candidate is protected while ordinary constituency electors vote.]
- **C - Incorrect:** the Articles concern Lok Sabha and State Legislative Assemblies. [MCQ 2, option C: They reserve seats in Rajya Sabha and Legislative Councils.]
- **D - Incorrect:** list alteration is governed by Articles 341 and 342. [MCQ 2, option D: They authorise State cabinets to alter SC/ST lists.]

Examiner trap 2: Reserved constituency does not mean separate electorate.

MCQ 3

Under Article 330, the special rule for STs in Assam autonomous districts is that

A. their reserved seats may be below their State population proportion. B. their seats are nominated rather than elected. C. their reserved-seat proportion cannot be less than their population share in the State. D. Parliament may replace their electorate with an autonomous-district roll.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** clause (3) creates a minimum, not permission to fall below it. [MCQ 3, option A: their reserved seats may be below their State population proportion.]
- **B - Incorrect:** Article 330 concerns elected Lok Sabha seats. [MCQ 3, option B: their seats are nominated rather than elected.]
- **C - Correct:** Article 330(3) supplies the minimum proportional safeguard. [MCQ 3, option C: their reserved-seat proportion cannot be less than their population share in the State.]
- **D - Incorrect:** the ordinary electoral framework remains. [MCQ 3, option D: Parliament may replace their electorate with an autonomous-district roll.]

Examiner trap 3: Do not flatten Article 330's Assam autonomous-district safeguard into the general formula.

MCQ 4

Which Article 332 proposition is accurate?

A. It creates identical rules for every State without exceptions. B. It reserves State Legislative Council seats for STs. C. It permits constituencies for Assam autonomous districts to include outside areas freely. D. It contains special minimum-representation rules for specified North-Eastern States.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** clauses (2)-(6) contain specific Assam and North-East safeguards. [MCQ 4, option A: It creates identical rules for every State without exceptions.]
- **B - Incorrect:** Article 332 applies to Legislative Assemblies. [MCQ 4, option B: It reserves State Legislative Council seats for STs.]
- **C - Incorrect:** clause (5) protects district territorial integrity. [MCQ 4, option C: It permits constituencies for Assam autonomous districts to include outside areas freely.]
- **D - Correct:** clauses (3A)/(3B) cover Arunachal Pradesh, Meghalaya, Mizoram, Nagaland and Tripura. [MCQ 4, option D: It contains special minimum-representation rules for specified North-Eastern States.]

Examiner trap 4: North-East exceptions must be identified by clause, not generalised to all States.

MCQ 5

For Articles 330 and 332, 'population' presently refers to

A. 2001 Census figures until relevant first post-2026 census figures are published. B. 2011 Census figures merely because they are the latest completed figures. C. 1971 Census figures for every reserved-seat calculation. D. any estimate notified by the Election Commission.

Answer: A.

Option-specific explanations:

- **A - Correct:** the shared Explanation expressly fixes that interim reference. [MCQ 5, option A: 2001 Census figures until relevant first post-2026 census figures are published.]
- **B - Incorrect:** the constitutional proviso specifically names 2001. [MCQ 5, option B: 2011 Census figures merely because they are the latest completed figures.]
- **C - Incorrect:** 1971 relates to a different total-seat freeze history, not this Explanation. [MCQ 5, option C: 1971 Census figures for every reserved-seat calculation.]

- **D - Incorrect:** the Constitution requires published census figures. [MCQ 5, option D: any estimate notified by the Election Commission.]

Examiner trap 5: Latest available demographic data is not automatically the constitutional reference.

MCQ 6

Article 330A reserves

A. one-third of Rajya Sabha seats for women. B. about one-third of directly elected Lok Sabha seats, including about one-third within Article 330 seats. C. one-third of only unreserved Lok Sabha seats. D. exactly half of every State's Lok Sabha seats.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** Rajya Sabha is outside Article 330A. [MCQ 6, option A: one-third of Rajya Sabha seats for women.]
- **B - Correct:** clauses (2)-(3) create both nested and overall design. [MCQ 6, option B: about one-third of directly elected Lok Sabha seats, including about one-third within Article 330 seats.]
- **C - Incorrect:** the overall count includes women within SC/ST reserved seats. [MCQ 6, option C: one-third of only unreserved Lok Sabha seats.]
- **D - Incorrect:** the text uses 'as nearly as may be' one-third. [MCQ 6, option D: exactly half of every State's Lok Sabha seats.]

Examiner trap 6: The SC/ST-women component is nested within, not additional to, the overall one-third.

MCQ 7

Article 332A applies to

A. State Legislative Councils only. B. Parliament and Panchayats together. C. every State Legislative Assembly, with the one-third and SC/ST-within-quota design. D. only Assemblies that pass a State ratification resolution.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** the Article concerns Legislative Assemblies. [MCQ 7, option A: State Legislative Councils only.]
- **B - Incorrect:** Parliament and local bodies have separate provisions. [MCQ 7, option B: Parliament and Panchayats together.]
- **C - Correct:** clauses (1)-(3) mirror the Assembly architecture. [MCQ 7, option C: every State Legislative Assembly, with the one-third and SC/ST-within-quota design.]
- **D - Incorrect:** Article 332A is constitutional text, subject to Article 334A activation. [MCQ 7, option D: only Assemblies that pass a State ratification resolution.]

Examiner trap 7: Do not move Article 332A into bicameral Councils or local bodies.

MCQ 8

What is the first current-status gate already completed for the 106th Amendment?

A. Publication of relevant Census 2027 population figures. B. Purpose-specific delimitation under Article 334A. C. Electoral use in the Eighteenth Lok Sabha. D. Gazette commencement on 16 April 2026 through S.O. 1922(E).

Answer: D.

Option-specific explanations:

- **A - Incorrect:** those relevant figures have not yet been published. [MCQ 8, option A: Publication of relevant Census 2027 population figures.]
- **B - Incorrect:** that exercise has not been completed. [MCQ 8, option B: Purpose-specific delimitation under Article 334A.]
- **C - Incorrect:** commencement did not itself activate reserved constituencies. [MCQ 8, option C: Electoral use in the Eighteenth Lok Sabha.]

- **D - Correct:** the Central Government appointed that date under section 1(2). [MCQ 8, option D: Gazette commencement on 16 April 2026 through S.O. 1922(E).]

Examiner trap 8: Commencement is completed; electoral operation is not.

MCQ 9

Under Article 334A, women's reservation first takes electoral effect after

A. published first-post-commencement census figures followed by delimitation for this purpose. B. Presidential assent alone. C. an Election Commission press note without delimitation. D. every State separately ratifies the 106th Amendment.

Answer: A.

Option-specific explanations:

- **A - Correct:** Article 334A(1) requires both sequential steps. [MCQ 9, option A: published first-post-commencement census figures followed by delimitation for this purpose.]
- **B - Incorrect:** assent/enactment preceded a separate commencement and activation chain. [MCQ 9, option B: Presidential assent alone.]
- **C - Incorrect:** an administrative announcement cannot replace the constitutional trigger. [MCQ 9, option C: an Election Commission press note without delimitation.]
- **D - Incorrect:** State ratification is not the operational trigger stated in Article 334A. [MCQ 9, option D: every State separately ratifies the 106th Amendment.]

Examiner trap 9: Census publication and delimitation are cumulative, not alternative, conditions.

MCQ 10

Which Article 334A duration statement is safest?

A. The fifteen years necessarily ran from Presidential assent in 2023. B. The fifteen-year period is linked to commencement of the reservation provisions, with continuation possible by parliamentary law. C. The fifteen years necessarily ran from Gazette commencement in April 2026 despite no operation. D. The reservation is permanent and cannot be continued or ended by law.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** clause (1) links the period to commencement of the reservation provisions. [MCQ 10, option A: The fifteen years necessarily ran from Presidential assent in 2023.]
- **B - Correct:** clauses (1)-(2) must be read together. [MCQ 10, option B: The fifteen-year period is linked to commencement of the reservation provisions, with continuation possible by parliamentary law.]
- **C - Incorrect:** that collapses Act commencement and commencement of reservation under clause (1). [MCQ 10, option C: The fifteen years necessarily ran from Gazette commencement in April 2026 despite no operation.]
- **D - Incorrect:** Article 334A expressly provides a time rule and parliamentary continuation route. [MCQ 10, option D: The reservation is permanent and cannot be continued or ended by law.]

Examiner trap 10: Do not start the fifteen-year electoral clock from a guessed event.

MCQ 11

How does rotation work under Article 334A(3)?

A. At every general election automatically. B. By executive order whenever the Union chooses. C. After each subsequent delimitation as Parliament may determine by law. D. Once only, at the first commencement notification.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** rotation is not tied automatically to each election. [MCQ 11, option A: At every general election automatically.]

- **B - Incorrect:** the clause requires the parliamentary-law framework. [MCQ 11, option B: By executive order whenever the Union chooses.]
- **C - Correct:** this is the exact rotation mechanism. [MCQ 11, option C: After each subsequent delimitation as Parliament may determine by law.]
- **D - Incorrect:** the text refers to each subsequent delimitation. [MCQ 11, option D: Once only, at the first commencement notification.]

Examiner trap 11: Rotation follows subsequent delimitation under law, not every election cycle.

MCQ 12

What is the present position of Article 331?

A. It currently guarantees two nominated members in every Lok Sabha. B. It was replaced by Article 330A. C. It authorises the Speaker to nominate Anglo-Indians. D. Its nomination power ceased through Article 334(b)'s seventy-year clock, although the text remains.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** the nomination period was not extended by the 104th Amendment. [MCQ 12, option A: It currently guarantees two nominated members in every Lok Sabha.]
- **B - Incorrect:** women's reservation did not textually replace Article 331. [MCQ 12, option B: It was replaced by Article 330A.]
- **C - Incorrect:** the original power belongs to the President. [MCQ 12, option C: It authorises the Speaker to nominate Anglo-Indians.]
- **D - Correct:** operation ended after 25 January 2020. [MCQ 12, option D: Its nomination power ceased through Article 334(b)'s seventy-year clock, although the text remains.]

Examiner trap 12: Operational expiry is not textual omission.

MCQ 13

Article 333 originally/currently printed authorises

A. the Governor to nominate one Anglo-Indian if representation is needed and inadequate, subject now to Article 334 expiry. B. the President to nominate two members to every Assembly. C. the Election Commission to reserve an Assembly constituency. D. a State cabinet to continue nomination beyond Article 334.

Answer: A.

Option-specific explanations:

- **A - Correct:** that states both the text and operative limit. [MCQ 13, option A: the Governor to nominate one Anglo-Indian if representation is needed and inadequate, subject now to Article 334 expiry.]
- **B - Incorrect:** Article 333 names the Governor and one member. [MCQ 13, option B: the President to nominate two members to every Assembly.]
- **C - Incorrect:** nomination and constituency reservation are different mechanisms. [MCQ 13, option C: the Election Commission to reserve an Assembly constituency.]
- **D - Incorrect:** State executive action cannot override the constitutional time clause. [MCQ 13, option D: a State cabinet to continue nomination beyond Article 334.]

Examiner trap 13: Remember President/up to two under 331; Governor/one under 333.

MCQ 14

The 104th Amendment changed Article 334 by

A. extending both SC/ST seats and Anglo-Indian nomination to eighty years. B. using eighty years for SC/ST seats and seventy years for Anglo-Indian nomination. C. permanently entrenching SC/ST reserved seats. D. deleting Articles 331, 333, 336 and 337.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** clause (b) remained at seventy years. [MCQ 14, option A: extending both SC/ST seats and Anglo-Indian nomination to eighty years.]
- **B - Correct:** separate clocks are the central change. [MCQ 14, option B: using eighty years for SC/ST seats and seventy years for Anglo-Indian nomination.]
- **C - Incorrect:** the provision remains time-framed. [MCQ 14, option C: permanently entrenching SC/ST reserved seats.]
- **D - Incorrect:** it amended Article 334 rather than deleting all those provisions. [MCQ 14, option D: deleting Articles 331, 333, 336 and 337.]

Examiner trap 14: The 104th Amendment created two clocks, not one blanket extension.

MCQ 15

Article 336 did which of the following?

A. Created a permanent Anglo-Indian quota in all public services. B. Applied to State police and judicial services only. C. Continued specified Union-service arrangements, reduced reserved posts biennially and ended after ten years. D. Ended all merit appointment of Anglo-Indians.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** it was limited, diminishing and ten-year transitional. [MCQ 15, option A: Created a permanent Anglo-Indian quota in all public services.]
- **B - Incorrect:** it named railway, customs, postal and telegraph Union services. [MCQ 15, option B: Applied to State police and judicial services only.]
- **C - Correct:** that is the full transition design. [MCQ 15, option C: Continued specified Union-service arrangements, reduced reserved posts biennially and ended after ten years.]
- **D - Incorrect:** clause (2) expressly preserved merit appointment. [MCQ 15, option D: Ended all merit appointment of Anglo-Indians.]

Examiner trap 15: Article 336 combined gradual reduction with continuing merit eligibility.

MCQ 16

Article 337 required an aided institution to make at least what share of annual admissions available to communities other than Anglo-Indians?

A. Ten per cent. B. One-third. C. Fifty per cent. D. Forty per cent.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** ten per cent was the periodic possible grant reduction. [MCQ 16, option A: Ten per cent.]
- **B - Incorrect:** that fraction belongs to the later women's-reservation design. [MCQ 16, option B: One-third.]
- **C - Incorrect:** Article 337 specifies forty per cent. [MCQ 16, option C: Fifty per cent.]
- **D - Correct:** the second proviso states the threshold. [MCQ 16, option D: Forty per cent.]

Examiner trap 16: Do not confuse the forty-per-cent admissions condition with the ten-per-cent grant diminution.

MCQ 17

Article 335 directly provides that

A. SC/ST claims are considered in public appointments consistently with administrative efficiency. B. all reservations must remain below fifty per cent. C. OBC and EWS quotas must be identical. D. efficiency of administration is exhaustively defined.

Answer: A.

Option-specific explanations:

- **A - Correct:** this is the main textual command. [MCQ 17, option A: SC/ST claims are considered in public appointments consistently with administrative efficiency.]
- **B - Incorrect:** the fifty-per-cent doctrine arises elsewhere. [MCQ 17, option B: all reservations must remain below fifty per cent.]
- **C - Incorrect:** Article 335 does not create either category's quota. [MCQ 17, option C: OBC and EWS quotas must be identical.]
- **D - Incorrect:** the Article mentions but does not define efficiency. [MCQ 17, option D: efficiency of administration is exhaustively defined.]

Examiner trap 17: Article 335 is a consideration rule, not a complete reservation code.

MCQ 18

The 82nd Amendment proviso to Article 335 concerns

A. Lok Sabha delimitation. B. relaxation of qualifying marks or evaluation standards for SC/ST promotion reservation. C. creation of the NCBC. D. economic criteria for EWS.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** it concerns services and promotion reservation. [MCQ 18, option A: Lok Sabha delimitation.]
- **B - Correct:** this is the proviso's confined enabling field. [MCQ 18, option B: relaxation of qualifying marks or evaluation standards for SC/ST promotion reservation.]
- **C - Incorrect:** that was the 102nd Amendment. [MCQ 18, option C: creation of the NCBC.]
- **D - Incorrect:** EWS comes from Articles 15(6)/16(6). [MCQ 18, option D: economic criteria for EWS.]

Examiner trap 18: The proviso is promotion-related; it is not a general power to lower every standard.

MCQ 19

Article 338(10) presently means that references to Scheduled Castes in Article 338 include

A. all socially and educationally backward classes. B. every religious minority. C. the Anglo-Indian community. D. economically weaker sections.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** NCBC now has Article 338B. [MCQ 19, option A: all socially and educationally backward classes.]
- **B - Incorrect:** the clause does not create a general minority mandate. [MCQ 19, option B: every religious minority.]
- **C - Correct:** clause (10) preserves this specific inclusion. [MCQ 19, option C: the Anglo-Indian community.]
- **D - Incorrect:** EWS is not inserted into Article 338(10). [MCQ 19, option D: economically weaker sections.]

Examiner trap 19: Article 338's Anglo-Indian cross-reference survives the nomination expiry.

MCQ 20

Civil-court powers of the commissions mean that

A. their reports automatically bind Parliament. B. they can add communities to constitutional lists. C. they may invalidate statutes finally. D. they may summon evidence during investigation but do not become courts issuing binding decrees.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** reporting and legislative law-making remain distinct. [MCQ 20, option A: their reports automatically bind Parliament.]
- **B - Incorrect:** formal list alteration follows the relevant constitutional process. [MCQ 20, option B: they can add communities to constitutional lists.]
- **C - Incorrect:** final constitutional adjudication belongs to courts. [MCQ 20, option C: they may invalidate statutes finally.]
- **D - Correct:** the powers are functional and inquiry-specific. [MCQ 20, option D: they may summon evidence during investigation but do not become courts issuing binding decrees.]

Examiner trap 20: Investigative powers do not transform advisory conclusions into judgments.

MCQ 21

Article 339(2) authorises

A. Union directions to a State concerning schemes essential for ST welfare. B. States to amend the ST list. C. the NCST to legislate welfare schemes. D. automatic grants without parliamentary appropriation.

Answer: A.

Option-specific explanations:

- **A - Correct:** this is the executive-supervision limb. [MCQ 21, option A: Union directions to a State concerning schemes essential for ST welfare.]
- **B - Incorrect:** Article 342 controls the list. [MCQ 21, option B: States to amend the ST list.]
- **C - Incorrect:** the Commission advises and reports; it does not legislate. [MCQ 21, option C: the NCST to legislate welfare schemes.]
- **D - Incorrect:** Article 339 is not a self-executing fiscal appropriation. [MCQ 21, option D: automatic grants without parliamentary appropriation.]

Examiner trap 21: Article 339 direction power is supervisory, not classificatory or appropriative.

MCQ 22

An Article 340 commission is best described as

A. the permanent NCBC. B. a presidential investigative commission on SEBC conditions, difficulties and remedies. C. a court deciding backward-class status finally. D. a State-list legislature.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** NCBC is established under Article 338B. [MCQ 22, option A: the permanent NCBC.]
- **B - Correct:** its report and action memorandum go to Parliament. [MCQ 22, option B: a presidential investigative commission on SEBC conditions, difficulties and remedies.]
- **C - Incorrect:** it investigates and recommends. [MCQ 22, option C: a court deciding backward-class status finally.]
- **D - Incorrect:** State/UT lists under Article 342A(3) require law by the competent legislature. [MCQ 22, option D: a State-list legislature.]

Examiner trap 22: Kalelkar/Mandal are Article 340 examples, not names for the permanent NCBC.

MCQ 23

Under Article 341, initial SC specification is made by

A. the State cabinet by executive order. B. the NCSC through a binding report. C. the President by public notification, after Governor consultation where a State is concerned. D. the Supreme Court by issuing a fresh caste schedule.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** a State cannot independently specify the constitutional list. [MCQ 23, option A: the State cabinet by executive order.]
- **B - Incorrect:** the Commission's report does not itself amend the list. [MCQ 23, option B: the NCSC through a binding report.]
- **C - Correct:** clause (1) establishes that process. [MCQ 23, option C: the President by public notification, after Governor consultation where a State is concerned.]
- **D - Incorrect:** adjudication cannot substitute the clause (1)/(2) process. [MCQ 23, option D: the Supreme Court by issuing a fresh caste schedule.]

Examiner trap 23: State consultation is not State list-alteration power.

MCQ 24

Who may include or exclude a community from an Article 342 ST list?

A. The Governor by notification. B. The NCST after inquiry. C. A State legislature by simple resolution. D. Parliament by law.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** the Governor is consulted at the initial State specification stage. [MCQ 24, option A: The Governor by notification.]
- **B - Incorrect:** NCST may recommend but cannot formally vary the list. [MCQ 24, option B: The NCST after inquiry.]
- **C - Incorrect:** State action cannot replace parliamentary law under Article 342(2). [MCQ 24, option C: A State legislature by simple resolution.]
- **D - Correct:** Article 342(2) reserves formal variation to Parliament. [MCQ 24, option D: Parliament by law.]

Examiner trap 24: The same President-then-Parliament architecture governs Articles 341 and 342.

MCQ 25

The 102nd Amendment inserted

A. Article 338B, original Article 342A and Article 366(26C). B. Articles 15(6) and 16(6) only. C. Article 330A and Article 334A. D. the Article 335 promotion-relaxation proviso.

Answer: A.

Option-specific explanations:

- **A - Correct:** this constitutionalised the NCBC/list architecture. [MCQ 25, option A: Article 338B, original Article 342A and Article 366(26C).]
- **B - Incorrect:** those provisions came through the 103rd Amendment. [MCQ 25, option B: Articles 15(6) and 16(6) only.]
- **C - Incorrect:** those came through the 106th Amendment. [MCQ 25, option C: Article 330A and Article 334A.]
- **D - Incorrect:** that was the 82nd Amendment. [MCQ 25, option D: the Article 335 promotion-relaxation proviso.]

Examiner trap 25: Do not transpose the 102nd, 103rd and 106th Amendments.

MCQ 26

What did the majority hold in Jaishri Laxmanrao Patil (2021) on the pre-105th Article 342A text?

A. States retained an express independent list power in clause (3). B. States lacked independent identification power and could make recommendations under the then text. C. Article 342A had no effect on State identification. D. The Central List was abolished.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** clause (3) was added later by the 105th Amendment. [MCQ 26, option A: States retained an express independent list power in clause (3).]
- **B - Correct:** this was the federal-list majority holding. [MCQ 26, option B: States lacked independent identification power and could make recommendations under the then text.]
- **C - Incorrect:** the majority found displacement of State identification power. [MCQ 26, option C: Article 342A had no effect on State identification.]
- **D - Incorrect:** the case did not abolish the Central List. [MCQ 26, option D: The Central List was abolished.]

Examiner trap 26: Keep Jaishri's Article 342A holding separate from its fifty-per-cent ceiling holding.

MCQ 27

After the 105th Amendment, Article 342A(1)-(2) governs

A. State SC lists. B. all EWS beneficiaries. C. the Central List for Central Government purposes. D. Panchayat reserved seats.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** Scheduled Castes remain governed by Article 341. [MCQ 27, option A: State SC lists.]
- **B - Incorrect:** EWS uses Articles 15(6)/16(6). [MCQ 27, option B: all EWS beneficiaries.]
- **C - Correct:** President specifies and Parliament varies it. [MCQ 27, option C: the Central List for Central Government purposes.]
- **D - Incorrect:** Article 243D governs that field. [MCQ 27, option D: Panchayat reserved seats.]

Examiner trap 27: Central-purpose SEBC identification is not a universal all-government list.

MCQ 28

Article 342A(3) permits

A. a State executive circular to alter the Central List. B. States to delete communities from Article 341. C. the NCBC to enact a list directly. D. a State or Union territory to maintain its own-purpose SEBC list by law, even if entries differ.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** clause (3) requires an own-purpose list by law. [MCQ 28, option A: a State executive circular to alter the Central List.]
- **B - Incorrect:** Article 341 list alteration remains with Parliament. [MCQ 28, option B: States to delete communities from Article 341.]
- **C - Incorrect:** NCBC is an advisory/monitoring commission. [MCQ 28, option C: the NCBC to enact a list directly.]
- **D - Correct:** this is the restored federal power. [MCQ 28, option D: a State or Union territory to maintain its own-purpose SEBC list by law, even if entries differ.]

Examiner trap 28: State-list difference is permitted, but the legal form 'by law' is mandatory.

MCQ 29

EWS reservation derives constitutionally from

A. Articles 15(6) and 16(6), inserted by the 103rd Amendment. B. Article 335. C. Article 342A. D. Articles 330A and 332A.

Answer: A.

Option-specific explanations:

- **A - Correct:** Janhit Abhiyan upheld this separate route by 3:2. [MCQ 29, option A: Articles 15(6) and 16(6), inserted by the 103rd Amendment.]
- **B - Incorrect:** Article 335 addresses SC/ST service claims. [MCQ 29, option B: Article 335.]
- **C - Incorrect:** Article 342A concerns SEBC lists. [MCQ 29, option C: Article 342A.]
- **D - Incorrect:** those concern women's legislative seats. [MCQ 29, option D: Articles 330A and 332A.]

Examiner trap 29: Economic weakness and social/educational backward-class listing use different constitutional routes.

MCQ 30

E.V. Chinnaiah (2004) held that

A. State sub-classification of the notified SC list was permissible without limit. B. the notified SCs formed an indivisible class for State sub-classification. C. States could amend the Presidential list. D. SC sub-classification was mandatory.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** it imposed the categorical bar later overruled. [MCQ 30, option A: State sub-classification of the notified SC list was permissible without limit.]
- **B - Correct:** Davinder Singh later overruled this holding. [MCQ 30, option B: the notified SCs formed an indivisible class for State sub-classification.]
- **C - Incorrect:** Article 341 list alteration remained parliamentary. [MCQ 30, option C: States could amend the Presidential list.]
- **D - Incorrect:** the case prohibited rather than mandated it. [MCQ 30, option D: SC sub-classification was mandatory.]

Examiner trap 30: Chinnaiah is the old bar, not the current permission.

MCQ 31

Which is the safest Davinder Singh (2024) proposition?

A. States may add and delete Scheduled Castes. B. Every State must immediately adopt one national sub-quota model. C. States may use rational, evidence-based SC sub-classification for benefit distribution without altering Article 341. D. A preferred subgroup may receive every SC-reserved seat.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** Article 341 formal list power did not move. [MCQ 31, option A: States may add and delete Scheduled Castes.]
- **B - Incorrect:** the judgment is enabling and policy remains reviewable. [MCQ 31, option B: Every State must immediately adopt one national sub-quota model.]
- **C - Correct:** the 6:1 ruling overruled Chinnaiah on this point. [MCQ 31, option C: States may use rational, evidence-based SC sub-classification for benefit distribution without altering Article 341.]
- **D - Incorrect:** exclusive benefit over all seats for the class violates the stated limit. [MCQ 31, option D: A preferred subgroup may receive every SC-reserved seat.]

Examiner trap 31: Distribution within the list is permissible; rewriting or monopolising the list is not.

MCQ 32

Which matching is accurate?

A. Article 334-Panchayats; Article 275-SC/ST list alteration. B. Article 243D-Lok Sabha; Article 243T-State Assemblies. C. Article 275-NCBC; Fifth Schedule-EWS. D. Articles 243D/243T-local bodies; Article 275-ST welfare/Scheduled Area grants.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** both matches assign the wrong legal effect. [MCQ 32, option A: Article 334-Panchayats; Article 275-SC/ST list alteration.]
- **B - Incorrect:** these Articles govern Panchayats and Municipalities. [MCQ 32, option B: Article 243D-Lok Sabha; Article 243T-State Assemblies.]
- **C - Incorrect:** Article 275 is fiscal and the Fifth Schedule is territorial. [MCQ 32, option C: Article 275-NCBC; Fifth Schedule-EWS.]
- **D - Correct:** neither provision alters a constitutional list. [MCQ 32, option D: Articles 243D/243T-local bodies; Article 275-ST welfare/Scheduled Area grants.]

Examiner trap 32: Local representation, fiscal support and class identification must remain separate.

PYQS AND ANSWER PRACTICE

Verified objective PYQ 1 - UPSC Prelims 2023, GS Paper I, Question 40

Question: Consider the following statements:

Statement-I: The Supreme Court of India has held in some judgements that the reservation policies made under Article 16(4) of the Constitution of India would be limited by Article 335 for maintenance of efficiency of administration.

Statement-II: Article 335 of the Constitution of India defines the term 'efficiency of administration'.

Which one of the following is correct?

A. Both statements are correct and Statement-II explains Statement-I. B. Both statements are correct but Statement-II does not explain Statement-I. C. Statement-I is correct but Statement-II is incorrect. D. Statement-I is incorrect but Statement-II is correct.

Final official/local key: C.

Solution: The official key treats Statement-I as correct. Statement-II is textually wrong: Article 335 mentions but does not define efficiency. For a current Mains answer, add the later qualification from *Davinder Singh* (2024), which frames Article 335 as a restatement of the need to consider SC/ST claims and understands efficiency through inclusion.

Verified objective PYQ 2 - UPSC Prelims 2024, GS Paper I, Question 81

Question: Consider the following statements regarding 'Nari Shakti Vandan Adhiniyam':

1. Provisions will come into effect from the 18th Lok Sabha.
2. This will be in force for 15 years after becoming an Act.
3. There are provisions for reservation of seats for Scheduled Castes women within the quota reserved for Scheduled Castes.

Which statements are correct?

Which statements are correct?

A. 1, 2 and 3 B. 1 and 2 only C. 2 and 3 only D. 1 and 3 only

Final official/local key: C.

Solution: Statement 1 fails because Article 334A requires the census-publication-delimitation chain rather than automatic Eighteenth Lok Sabha operation. The official key accepted Statements 2 and 3. Current-law precision additionally requires noting S.O. 1922(E), 16 April 2026 commencement, while electoral operation still awaits the remaining Article 334A steps.

Supporting Mains PYQ 3 - UPSC 2018, GS Paper II, 10 marks

Whether National Commission for Scheduled Castes (NCSC) can enforce the implementation of constitutional reservation for the Scheduled Castes in the religious minority institutions? Examine.

Answer withheld pending official UPSC key.

Demand route: Article 338 inquiry/reporting powers -> Article 15(5) minority-institution exclusion -> Article 30(1) -> commission accountability versus binding adjudication.

Supporting Mains PYQ 4 - UPSC 2022, GS Paper II, 10 marks

Discuss the role of the National Commission for Backward Classes in the wake of its transformation from a statutory body to a constitutional body.

Answer withheld pending official UPSC key.

Demand route: 102nd Amendment -> Article 338B functions -> advisory/reporting limits -> Jaishri (2021) -> 105th Amendment and current Central/State list split.

SIX ORIGINAL MAINS MODELS

Original Mains 1 - 10 marks, 150 words

Question: Explain why Part XVI cannot be described as a single reservation code.

Part XVI advances substantive equality through distinct constitutional techniques. Articles 330-334A protect legislative representation; Article 335 requires consideration of SC/ST claims in public services consistently with administrative efficiency; Articles 338-340 create monitoring, supervision and investigative mechanisms; and Articles 341-342A control class identification. These functions are not interchangeable. A constitutional list identifies who is recognised, while Articles 15, 16, 243D, 243T, ordinary law or policy determine the relevant educational, service or local-body benefit. Similarly, a commission may inquire and recommend but cannot amend a list or issue a binding judicial decree. Thus Part XVI is better understood as a differentiated equality architecture. Its effectiveness depends on exact institutional competence, lawful benefit design and evidence-based implementation rather than treating every safeguard as a single quota power.

[ORIGINAL MAINS 1 MODEL ANSWER WORD COUNT: 125]

Examiner note: The model follows claim -> named constitutional/case evidence -> analysis -> qualification and directly answers the directive.

Original Mains 2 - 10 marks, 150 words

Question: Distinguish Article 341 list alteration from SC sub-classification after Davinder Singh.

Article 341 answers who is a Scheduled Caste in relation to a State or Union territory. The President initially specifies the list by public notification after the required consultation, and Parliament alone may include or exclude communities by law. Sub-classification answers a different question: how a valid benefit is distributed among castes already on that list. *E.V. Chinnaiah* (2004) treated the notified class as indivisible, but *State of Punjab v Davinder Singh* (2024) overruled that bar by 6:1. A State may now differentiate under Articles 15(4) or 16(4) on a rational principle connected to substantive equality and supported by evidence, including service-representation data where relevant. However, it cannot alter the Article 341 list or give every SC-reserved seat exclusively to a preferred subgroup. The ruling enables reviewable distribution; it does not mandate one national model.

[ORIGINAL MAINS 2 MODEL ANSWER WORD COUNT: 139]

Examiner note: The model follows claim -> named constitutional/case evidence -> analysis -> qualification and directly answers the directive.

Original Mains 3 - 15 marks, 250 words

Question: Analyse the constitutional design and current operational status of women's legislative reservation.

The 106th Amendment creates women's legislative reservation through nested and staged constitutional design. Article 330A reserves, as nearly as may be, one-third of directly elected Lok Sabha seats, including one-third within SC/ST reserved seats. Article 332A applies the same structure to State Assemblies, while amended Article 239AA covers the Delhi Assembly. Rajya Sabha and Legislative Councils remain outside this design.

Implementation is deliberately separated from enactment. The Amendment was enacted in September 2023 and commenced through S.O. 1922(E) on 16 April 2026. Article 334A(1), however, postpones electoral effect until relevant figures from the first census taken after commencement are published and delimitation is undertaken for this purpose. As of 9 September 2026, the relevant figures and purpose-specific delimitation are incomplete; the reservation is therefore in force as constitutional text but not electorally operational.

Article 334A links the initial reservation period to fifteen years from commencement of the reservation provisions, allows Parliament by law to determine continuation, and makes rotation effective after each subsequent delimitation as Parliament provides. Existing Houses and Assemblies remain unaffected until dissolution.

The design promotes descriptive inclusion and an SC/ST-women guarantee, but its substantive value will depend on fair delimitation, internal party democracy and legislative agency. A sound answer must therefore distinguish assent, commencement, census publication, delimitation and actual electoral use.

[ORIGINAL MAINS 3 MODEL ANSWER WORD COUNT: 219]

Examiner note: The model follows claim -> named constitutional/case evidence -> analysis -> qualification and directly answers the directive.

Original Mains 4 - 15 marks, 250 words

Question: Discuss how the 102nd and 105th Amendments reorganised SEBC identification in the Indian federation.

The 102nd Amendment Act, 2018 transformed backward-class safeguards by inserting Article 338B for a constitutional NCBC, Article 342A for SEBC specification and Article 366(26C). It added permanence, complaint inquiry, safeguard monitoring, planning advice and parliamentary reporting. Yet the original Article 342A created a federal ambiguity over who could identify SEBCs for State purposes.

In *Jaishri Laxmanrao Patil v Chief Minister, Maharashtra* (2021), the Supreme Court majority read the pre-105th text as displacing States' independent identification power and leaving them to recommend changes. The judgment separately invalidated the Maratha reservation for breaching the ordinary fifty-per-cent ceiling without exceptional circumstances; that issue should not be collapsed into the list-power holding.

The 105th Amendment Act, 2021 supplied an express federal correction. Article 342A(1)-(2) now governs the Central List for Central Government purposes: the President specifies and Parliament includes or excludes by law. The Explanation defines that Central List. Article 342A(3) permits each State or Union territory, by law, to prepare and maintain its own-purpose list, whose entries may differ. Related changes to Article 366(26C) and Article 338B(9) align the consultation rule.

Thus India now has coordinated but distinct Central and State SEBC lists. This restores local responsiveness while requiring transparent criteria, reliable data and judicially reviewable legislation. It does not confer State power over SC/ST lists under Articles 341 and 342.

[ORIGINAL MAINS 4 MODEL ANSWER WORD COUNT: 225]

Examiner note: The model follows claim -> named constitutional/case evidence -> analysis -> qualification and directly answers the directive.

Original Mains 5 - 20 marks, 250 words

Question: Evaluate whether Part XVI successfully combines recognition, representation and redistribution.

Part XVI converts substantive equality into a constitutional architecture of recognition, representation and accountability. Articles 341, 342 and 342A identify protected classes through controlled list procedures. Articles 330 and 332 secure SC/ST presence in the Lok Sabha and State Assemblies without separate electorates. Articles 338, 338A and 338B create specialised commissions, while Articles 339 and 340 generate supervision and evidence. Article 335 connects SC/ST service claims with inclusive administrative efficiency.

The architecture has important strengths. Parliamentary control over SC/ST list alteration protects formal integrity; State/UT SEBC lists after the 105th Amendment improve federal responsiveness; action-taken memoranda expose governmental non-acceptance; and periodic Article 334 amendments keep legislative reservation democratically reviewable. The 106th Amendment also adds women's representation, including within SC/ST seats.

However, recognition does not guarantee redistribution. A list entry needs a separate benefit source, adequate budgets and competent administration. Commission recommendations are not binding. Delimitation delays can postpone political inclusion. Unequal capture within protected classes may persist, while unsupported sub-classification can reproduce political patronage.

Davinder Singh (2024) offers a calibrated response by permitting rational, evidence-based SC sub-classification while preserving Article 341 list authority and barring all-seats exclusivity. Similarly, the Central/State SEBC split requires comparable data and reasoned law.

Therefore Part XVI is normatively strong but implementation-dependent. Success requires exact source discipline, quality data, fair distribution, legislative accountability and judicial review, not merely constitutional recognition.

[ORIGINAL MAINS 5 MODEL ANSWER WORD COUNT: 230]

Examiner note: The model follows claim -> named constitutional/case evidence -> analysis -> qualification and directly answers the directive.

Original Mains 6 - 20 marks, 250 words

Question: Examine Article 335 in relation to reservation, efficiency and the wider Part XVI framework.

Article 335 is the service-claim bridge within Part XVI. It requires the claims of SC/ST members to be considered in appointments to Union and State services consistently with administrative efficiency. The 82nd Amendment proviso permits provisions relaxing qualifying marks or lowering evaluation standards for reservation in promotion. The Article neither fixes a quota nor defines efficiency.

Its operation must be read with Article 16. Articles 16(4A) and 16(4B), valid service law and controlling precedent determine the legality of promotion and carry-forward measures. *M. Nagaraj* (2006) upheld the enabling amendments subject to constitutional conditions; *Jarnail Singh* (2018) removed the requirement to prove SC/ST backwardness while retaining other controls. In *Davinder Singh* (2024), the Chief Justice's conclusions described Article 335 as a restatement of the need to consider SC/ST claims rather than a free-standing veto and understood efficiency through inclusion and equality.

Article 335 must also remain separate from identification and oversight. Articles 341-342 determine who is listed; lawful policy distributes the benefit; Articles 338-338A monitor safeguards; courts review constitutionality. OBC and EWS routes arise elsewhere.

An effective framework therefore measures efficiency by constitutional outcomes, competence and representative administration rather than exclusion alone. Yet inclusion cannot justify arbitrary standards or unsupported policy. The proper balance is evidence-based design, transparent criteria, periodic review and fidelity to the exact enabling clause.

[ORIGINAL MAINS 6 MODEL ANSWER WORD COUNT: 222]

Examiner note: The model follows claim -> named constitutional/case evidence -> analysis -> qualification and directly answers the directive.

OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER

1. Recognition, representation and redistribution

Recognition through Articles 341-342A establishes legal identity; representation through Articles 330-334A secures legislative presence; redistribution depends additionally on Articles 15-16, legislation, budgets, service rules and programme delivery. **Advanced inference:** constitutional recognition is necessary for targeted governance but cannot substitute administrative capacity.

2. Federal differentiation after the 105th Amendment

SC/ST list alteration remains parliamentary, while SEBC identification is expressly dual. This asymmetry reflects different constitutional histories. State/UT own-purpose SEBC lists can improve local responsiveness, but comparability, transparent criteria and reasoned legislative records are needed to prevent arbitrary inclusion.

3. Descriptive and substantive representation

Reserved seats improve presence but do not guarantee independent voice, internal party democracy, committee influence or constituency responsiveness. Women's reservation may deepen intersectional representation through SC/ST-within-quota seats, yet candidate selection and rotation design will shape substantive outcomes.

4. Sub-classification as anti-capture design

Davinder Singh permits policy to address unequal benefit capture within the SC class. The advanced question is institutional: what evidence measures deprivation, who reviews categories, how frequently they are revised and how preference avoids all-seats exclusivity. The judgment does not supply a universal ready-made quota formula.

CONSOLIDATED REGISTER NOTES

One-line thesis

Part XVI is a differentiated substantive-equality architecture: Articles 330-334A represent, Article 335 considers SC/ST service claims, Articles 338-340 monitor/investigate, and Articles 341-342A identify classes.

Article-by-Article decoder

Article	Exact legal meaning
330	Population-linked SC/ST reservation in Lok Sabha, including Assam autonomous-district safeguards; common territorial electorate.
330A	About one-third of directly elected Lok Sabha seats for women, including about one-third within Article 330 SC/ST seats.
331	Conditional presidential nomination of up to two Anglo-Indians to Lok Sabha; operation expired through Article 334(b).
332	Population-linked SC/ST reservation in State Assemblies with specified Assam/North-East safeguards.
332A	About one-third of directly elected State Assembly seats for women, including about one-third within SC/ST seats.
333	Conditional gubernatorial nomination of one Anglo-Indian to a State Assembly; operation expired through Article 334(b).
334	Eighty-year SC/ST-seat clock and seventy-year Anglo-Indian nomination clock; existing House protected until dissolution.
334A	Census-publication-delimitation activation, fifteen-year initial duration, parliamentary continuation, later-delimitation rotation, existing-House protection.
335	SC/ST claims in Union/State services considered consistently with efficiency; promotion-relaxation proviso.
336	Diminishing specified Union-service transition for Anglo-Indians; exhausted after ten years.
337	Diminishing special educational-grant transition plus forty-per-cent admissions condition; exhausted after ten years.
338	NCSC safeguard monitoring, complaints, advice/evaluation, reports and inquiry powers; clause (10) includes Anglo-Indians.
338A	NCST parallel constitutional safeguard and tribal-development commission.
338B	NCBC constitutional SEBC safeguard commission; advice/reporting, not list amendment.
339	Scheduled Area/ST-welfare commission and Union direction power to States.
340	Temporary presidential commission to investigate SEBC conditions and recommend measures/grants.
341	President initially specifies territorial SC list; Parliament alone includes/excludes by law.
342	President initially specifies territorial ST list; Parliament alone includes/excludes by law.
342A	Central SEBC List under President/Parliament plus State/UT own-purpose lists by law after the 105th Amendment.

Amendment rail

Amendment	Provision affected	Exam effect
8th (1959)	Article 334	Extended original ten-year representation period to twenty years.
23rd (1969)	Articles 333/334	One State nominee design and extension to thirty years.
45th (1980)	Article 334	Extended to forty years.
51st (1984)	Articles 330/332	Reworked ST representation for Assam autonomous districts and specified North-East States.

Amendment	Provision affected	Exam effect
57th (1987)	Article 332(3A)	Preserved minimum ST Assembly representation in four North-Eastern States.
62nd (1989)	Article 334	Extended to fifty years.
65th (1990)	Article 338	Replaced the Special Officer with a multi-member NCSC/ST framework.
72nd (1992)	Article 332(3B)	Added Tripura ST minimum-representation transition.
79th (1999)	Article 334	Extended to sixty years.
82nd (2000)	Article 335 proviso	Enabled qualifying-mark/evaluation relaxation for SC/ST promotion reservation.
89th (2003)	Articles 338/338A	Separated NCSC and NCST.
90th (2003)	Article 332(6) proviso	Preserved notified ST/non-ST representation in Bodoland-area constituencies.
95th (2009)	Article 334	Extended both then-operating clocks to seventy years.
102nd (2018)	Articles 338B, 342A, 366(26C)	Constitutionalised NCBC and created original SEBC-list architecture.
103rd (2019)	Articles 15(6), 16(6)	Created separate EWS enabling route; did not amend Part XVI lists.
104th (2019; effective 2020)	Article 334	SC/ST seats to eighty years; Anglo-Indian nomination stayed at seventy and ceased.
105th (2021)	Articles 338B, 342A, 366(26C)	Retained Central List and restored express State/UT own-purpose list power by law.
106th (2023; commenced 2026)	Articles 239AA, 330A, 332A, 334A	Women's reservation design; electoral operation awaits published census figures and delimitation.

Judgment rail

- **E.V. Chinnaiah (2004)**: old rule treating the notified SC class as indivisible for State sub-classification.
- **M. Nagaraj (2006)**: upheld promotion-reservation enabling amendments subject to constitutional conditions.
- **Jarnail Singh (2018)**: removed the requirement to prove SC/ST backwardness and refined promotion doctrine.
- **Jaishri Laxmanrao Patil (2021)**: majority read pre-105th Article 342A as displacing State identification power; separate holding struck Maratha reservation under the ceiling doctrine.
- **Janhit Abhiyan (2022)**: 3:2 majority upheld the 103rd Amendment EWS architecture.
- **State of Punjab v Davinder Singh (2024)**: 6:1 Court overruled Chinnaiah's bar and permitted rational, evidence-based SC sub-classification without Article 341 list alteration or all-seats exclusivity.

Current-status box - 9 September 2026

- The 106th Amendment commenced on **16 April 2026** through **S.O. 1922(E)**.
- Relevant figures from the first census taken after commencement are not yet published.
- Purpose-specific delimitation under Article 334A is not complete.
- Women's legislative reservation is therefore **not yet electorally operational**.
- No current list entry, delimitation outcome or implementation date is inferred.

Prelims traps

1. Reserved seat is not separate electorate.
2. 2001, not 2011, is the present Articles 330/332 population reference.
3. Articles 331/333 remain printed but their nomination operation expired.
4. Article 335 mentions but does not define efficiency.
5. Civil-court inquiry powers do not make commission reports binding.
6. State SEBC-list power does not extend to SC/ST list alteration.
7. EWS is not an Article 342A category.
8. Davinder Singh permits reviewable distribution, not list rewriting.

Executable answer spine

Introduction: define Part XVI through the four-technique map. **Body 1:** decode the exact Article and protected class. **Body 2:** state authority, procedure and legal effect. **Body 3:** add the relevant amendment/judgment with its narrow holding. **Body 4:** separate identification, benefit, monitoring and current operation. **Conclusion:** substantive equality requires both inclusion and institutional competence.